

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #10	CCRB Case #: 201609062	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/04/2016 3:15 PM	Location of Incident: Northeast corner of South Road and Sutphin Boulevard	18 Mo. SOL 4/4/2018	Precinct: 103		
Date/Time CV Reported Fri, 10/28/2016 1:46 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/28/2016 1:46 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Russo	13939	949593	NARCBQS
2. DT3 Roberto Toribio	03100	948148	NARCBQS
3. SGT Mark Sinatra	04720	944174	NARCBQS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Vincent Hoosack	03958	923961	NARCBQS
2. DT3 Brittany Mcgee	4934	949303	NARCBQS
3. POM Julio Meyreles	22000	940470	NARCBQS
4. DT3 Victor Rosario	06261	937436	NARCBQS

§ 87(2)(e), § 87(2)(f)

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Roberto Toribio	Discourtesy: Detective Roberto Toribio spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Mark Sinatra	Abuse: Sergeant Mark Sinatra stopped § 87(2)(b)	B . Exonerated
C . POM Michael Russo	Abuse: Police Officer Michael Russo stopped § 87(2)(b)	C . Exonerated
D . POM Michael Russo	Force: Police Officer Michael Russo pointed his gun at § 87(2)(b)	D . Unsubstantiated
E . POM Michael Russo	Discourtesy: Police Officer Michael Russo spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . SGT Mark Sinatra	Abuse: Sergeant Mark Sinatra authorized the search of the vehicle in which § 87(2)(b) was an occupant	F . Unsubstantiated

Case Summary

This complaint was filed on October 28, 2016 by § 87(2)(b) § 87(2)(b) the mother of § 87(2)(b) through the CCRB's online website. § 87(2)(b) § 87(2)(b) was not present for this incident. On October 4, 2016, § 87(2)(b) drove his cousin § 87(2)(b) and her friend, § 87(2)(b) to the corner of South Road and Sutphin Boulevard in Queens. § 87(2)(b) then drove his vehicle, double parked it approximately a block away from the location, and waited for § 87(2)(b) and § 87(2)(b) to return to the vehicle. § 87(2)(b) sold marijuana § 87(2)(e), § 87(2)(f)

§ 87(2)(b) and § 87(2)(b) approximately half a block away from § 87(2)(b)'s vehicle. § 87(2)(b) alleged that when she was stopped, Det. Toribio told her to "Turn the fuck around" and "shut the fuck up. (**Allegation A**) Sgt. Sinatra and PO Russo stopped § 87(2)(b) while he was in his vehicle. (**Allegation B and C**) While in the police van, PO Russo allegedly pointed his gun at § 87(2)(b) and stated, "Don't fucking move, stop the car. Get the fuck out." (**Allegations D and E**) § 87(2)(b) was handcuffed and escorted to the back of his vehicle. § 87(2)(b) asked PO Russo why he was being arrested; PO Russo allegedly responded, "Shut the fuck up." (**Subsumed with Allegation E**) Sgt. Sinatra allegedly searched § 87(2)(b)'s vehicle. (**Allegation F**) § 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b). (Board Reviews 01 and 02) § 87(2)(b) was arrested for § 87(2)(b). (Board Review 03)

There is no video footage available of this incident. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b)'s arrest.
- On March 9, 2017, a FOIL request was sent to the Comptroller's Office; the results of this inquiry will be added to the case file upon receipt. (Board Review 04)
- § 87(2)(b) | §§ 86(1)(3)&(4) | § 87(2)(c)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and the first case involving § 87(2)(b) and § 87(2)(b) (Board Review 06)
- PO Russo has been a member of service for six years and has had one other complaint filed against him, involving two allegations. There are no substantiated allegations against him § 87(2)(g).
- Det. Toribio has been a member of service for eight years and this is the first case in which he is a subject officer.
- Sgt. Sinatra has been a member of service for ten years and has had fifteen other complaints filed against him, involving 44 allegations. Allegations of a vehicle search and refusal to provide name/shield number were substantiated in CCRB #201506484; the NYPD did not conduct disciplinary action in regards to the vehicle search and imposed

command discipline B for the refusal to provide name/shield number allegation. In CCRB #201506493, allegations of physical force, a vehicle search, property damage, search of a person, and two allegations of refusal to provide name/shield number were substantiated; the CCRB recommended charges and the case is currently assigned to APU. In CCRB #201601667, an allegation of physical force was substantiated; the CCRB recommended charges and the case is currently assigned to APU. There are currently two open cases in which Sgt. Sinatra is a subject officer, CCRB #201607151 and #201610511. § 87(2)(g) In CCRB #201502100, an allegation of a vehicle search was disposed as unsubstantiated.

Potential Issues

- § 87(2)(b) refused to provide a phone statement or a verified statement to the CCRB because her criminal case was over.

Findings and Recommendations

Allegations not Pleaded

- § 87(2)(g), § 87(2)(e), § 87(2)(f) [REDACTED]
- **Discourtesy-Word:** In his in person statement with the CCRB, § 87(2)(b) alleged that Det. McGee told § 87(2)(b) “Shut up, don’t fucking talk.” § 87(2)(g) § 87(2)(b) did not allege this herself, § 87(2)(g) [REDACTED]

Allegation A-Discourtesy: Detective Roberto Toribio spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that when she and § 87(2)(b) were stopped by Det. McGee and Det. Toribio, she was searched by Det. McGee. (Board Review 07) While this was happening, Det. Toribio asked Det. McGee where § 87(2)(b)’s phone was. § 87(2)(b) turned around to answer Det. Toribio and he stated, “Turn the fuck around”; § 87(2)(b) complied with his instruction. § 87(2)(b) stated that PO Russo left § 87(2)(b) and came over to where § 87(2)(b) was. § 87(2)(b) explained to Det. Toribio that her § 87(2)(b) was a police officer. Det. Toribio asked her where he worked and how long he worked there. § 87(2)(b) stated that she did not recall where he worked but he worked there for a few years. Either PO Russo or Det. Toribio said, “That’s not that long.” § 87(2)(b) asked, “Are you going to call him?” Det. Toribio responded, “Shut the fuck up.” § 87(2)(b) did not allege any profanity used against her during her phone statement.

In his phone statement to the CCRB, § 87(2)(b) stated he was too far away from § 87(2)(b) and § 87(2)(b) to hear any interactions between them and the officers. In his in person statement to the CCRB, § 87(2)(b) stated that when Det. McGee and Det. Toribio first approached § 87(2)(b) and § 87(2)(b) on their walk back to his vehicle, Det. McGee told § 87(2)(b) “Shut up, don’t fucking talk.” (Board Review 08) In the prisoner van, § 87(2)(b) told § 87(2)(b) that a male officer cursed at her. § 87(2)(b) did not recall the specifics of that conversation.

The investigation does not have § 87(2)(b)'s version of events because she refused to speak to the CCRB in any capacity.

PO Russo (Board Review 09) stated that he was with § 87(2)(b) for the entire duration of this incident and was not involved in the stop of § 87(2)(b) and § 87(2)(b). Det. McGee (Board Review 10) stated that she conducted a frisk of both § 87(2)(b) and § 87(2)(b). At no point did Det. Toribio tell § 87(2)(b) to “turn the fuck around.” § 87(2)(b) and § 87(2)(b) later had a conversation with Det. McGee about the fact that § 87(2)(b) § 87(2)(b) was a police officer; Det. McGee did not recall this coming up at the scene. Det. McGee stated that Det. Toribio did not say “shut the fuck up” or use any profanity toward § 87(2)(b).

Det. Toribio corroborated § 87(2)(b) in that they did have a conversation at the scene of her arrest about her father being a police officer. (Board Review 11) Det. Toribio asked § 87(2)(b) where he worked but did not ask how long he had been on the force. § 87(2)(b) asked Det. Toribio if he could call her § 87(2)(b). Det. Toribio said she would have to do this at the stationhouse. Det. Toribio denied telling § 87(2)(b) to “turn the fuck around” or “shut the fuck up.” Det. Toribio did not use any profanity in speaking with § 87(2)(b) as she was calm and not resisting arrest.

Patrol Guide Procedure 203-09 requires that officers be courteous and respectful in their interactions with the public. (Board Review 12) § 87(2)(b) only alleged these discourtesies in her in-person statement and not in her phone statement. § 87(2)(g) § 87(2)(b) did not hear Det. Toribio curse at § 87(2)(b) and only heard Det. McGee tell her to “Shut the fuck up.” § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B-Abuse of Authority: Sergeant Mark Sinatra stopped § 87(2)(b)

Allegation C-Abuse of Authority: Police Officer Michael Russo stopped § 87(2)(b)

§ 87(2)(g).

It is undisputed that Sgt. Sinatra, PO Russo, and Det. Hoosack stopped § 87(2)(b) while he was double parked on South Road. It is undisputed that Det. Hoosack arrived in the black sedan and parked behind § 87(2)(b) and that PO Russo and Sgt. Sinatra parked head on with § 87(2)(b)'s vehicle a few seconds later.

In his CCRB testimony, § 87(2)(b) testified that he knew that § 87(2)(b) was a marijuana smoker but he did not know that she was planning on selling narcotics on October 4, 2016. § 87(2)(b) asked § 87(2)(b) to drop her off at the corner of South Road and Sutphin Boulevard because she wanted to drop something off for a friend. § 87(2)(b) did not know what that something was or who § 87(2)(b)'s friend was. After dropping § 87(2)(b) and § 87(2)(b) off, § 87(2)(b) double parked approximately a block away from the location. Approximately

two minutes after he parked, a black sedan pulled up behind his vehicle and a black van pulled in front of his vehicle, facing him head on.

In her statement to the CCRB, § 87(2)(b) stated that while she was in the vehicle with § 87(2)(b) and § 87(2)(b) § 87(2)(b) had multiple phone calls § 87(2)(e), § 87(2)(f) [REDACTED]

§ 87(2)(b) refused to cooperate with the investigation in any capacity.

§ 87(2)(e), § 87(2)(f) [REDACTED]

§ 87(2)(g) [REDACTED] PO Meyreles, who was assigned to the prisoner van with Det. Rosario, did not recall the details of the positive buy sign but stated that Sgt. Sinatra stated over the radio to arrest all three individuals. (Board Review 16) Det. Rosario stated that § 87(2)(e) provided descriptions of a male and two females; he did not recall any mention of a vehicle. (Board Review 17) Det. Toribio recalled the vehicle description was provided over the radio but he did not know why § 87(2)(b) was stopped. (Board Review 18) Det. McGee observed the black BMW prior to receiving the positive buy sign; § 87(2)(e), § 87(2)(f) [REDACTED] Det. McGee stated that § 87(2)(e) never implicated § 87(2)(b) in the deal. Det. Hoosack recalled the vehicle's description was provided over the radio. Sgt. Sinatra instructed Det. Hoosack to stop § 87(2)(b) Det. Hoosack did not know what § 87(2)(b) was going to be placed under arrest for. (Board Review 19)

PO Russo and Sgt. Sinatra (Board Review 20) corroborated that § 87(2)(e) stated that the vehicle § 87(2)(b) and § 87(2)(b) exited was a BMW and that all three parties were together. Both officers corroborated that § 87(2)(e) later stated at the stationhouse that only two females were involved in the sale and the male was not involved. PO Russo stated that at the time of the stop,

he did not know if all three individuals conducted the sale but stated that all three would be placed under arrest for the sale of marijuana because all the parties were together. Sgt. Sinatra testified that § 87(2)(e) stated that § 87(2)(b) participated in the buy by transporting § 87(2)(b) and § 87(2)(b) to the location and that he was immediately placed under arrest because he “was absolutely part of the sale, he drove them to the location.”

“A person is guilty of criminal sale of marihuana in the fourth degree when he knowingly and unlawfully sells marihuana.” (NY Penal Law 221.40) (Board Review 20) A person is guilty of being criminally liable for the conduct of another “when, acting with the mental culpability required for the commission thereof, he solicits, requests, commands, importunes or intentionally aids such person to engage in such conduct” (NY Penal Law 20.00) (Board Review 21) Accomplice liability requires “at minimum, defendant's awareness of the proscribed conduct and some overt act by defendant in furtherance of that conduct.” *People v. Hibbert*, 282 A.D.2d 365, 725 N.Y.S.2d 305, 2001 N.Y. App. Div.(N.Y. App. Div. 1st Dep't 2001) (Board Review 22) *Hibbert*'s definition of accomplice liability was reaffirmed in the 2016 case *People v Carpenter*, 138 A.D.3d 1130, 30 N.Y.S.3d 299, 2016 N.Y. App. Div. LEXIS 3058, 2016 NY Slip Op 03185 (N.Y. App. Div. 2d Dep't 2016) (Board Review 23)

§ 87(2)(g), § 87(2)(e), § 87(2)(f)

It is therefore recommended that **Allegations B and C** be closed as **exonerated**.

Allegation D-Force: Police Officer Michael Russo pointed his gun at § 87(2)(b)

Allegation E-Discourtesy: Police Officer Michael Russo spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) was calm and compliant in exiting his vehicle and that he was immediately handcuffed. It is undisputed that PO Russo and Det. Hoosack escorted § 87(2)(b) to the back of the police van and obtained his pedigree information. § 87(2)(g)

§ 87(2)(b) testified that when he was in his vehicle, PO Russo, the driver of the police van, pointed his gun at him through the police van's front windshield towards his front windshield and stated, “Don't fucking move, stop the car. Get the fuck out.” § 87(2)(b) put his hands up and stepped out of his vehicle. § 87(2)(b) estimated that PO Russo had his gun out for 30-45

seconds. While standing at the back of his vehicle with Det. Hoosack and PO Russo, § 87(2)(b) asked why he was being arrested, PO Russo responded, “Shut the fuck up.” In his phone statement with the CCRB, § 87(2)(b) alleged that both PO Russo and Sgt. Sinatra, who was the passenger of the police van, had their guns pointed at him. § 87(2)(b) also alleged that it was Sgt. Sinatra who said, “Don’t fucking move, don’t fucking move.” § 87(2)(b) was consistent that when he questioned as to why he was being arrested, PO Russo stated, “Shut the fuck up.”

§ 87(2)(b) testified that while walking back to § 87(2)(b)’s vehicle, she observed two black unmarked sedans surrounding § 87(2)(b)’s vehicle. § 87(2)(b) was standing in the back of his vehicle. PO Russo was next to him, saying, ‘I’ll fucking shackle you right now.’ § 87(2)(b) never heard § 87(2)(b) speak to PO Russo but heard PO Russo tell § 87(2)(b) multiple times to “Shut the fuck up.” § 87(2)(b) could not recall the context of this profanity. In her phone statement to the CCRB, § 87(2)(b) stated that she heard PO Russo say to § 87(2)(b) “I’ll fucking shackle you right now. Shut the fuck up. Don’t fucking say anything.” (Board Review 21)

§ 87(2)(e), § 87(2)(f) Det. Toribio, Det. McGee, PO Meyreles, and Det. Rosario did not have any interactions with § 87(2)(b) and were not present at the time of the gun pointed and discourtesy allegations.

§ 87(2)(b) refused to provide a statement to the CCRB.

Det. Hoosack and Sgt. Sinatra denied that PO Russo pointed his gun at § 87(2)(b) or stated, “Don’t fucking move, stop the car. Get the fuck out”, “Shut the fuck up”, or use any profanity toward § 87(2)(b). Sgt. Sinatra and PO Russo both testified that § 87(2)(b) was not a threat on that day and there was no reason to point a gun at him. PO Russo acknowledged searching § 87(2)(b) and taking his pedigree information but stated he never said “Shut the fuck up” to him or used any discourteous language toward him.

Police Department v. Gilner (OATH index No.955/00) states that an officer is permitted to draw and point his firearm at another person if he has reasonable fear for his own or another’s safety. (Board Review 24)

Patrol Guide Procedure 203-09 requires that officers be courteous and respectful in their interactions with the public. (Board Review 12)

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It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation F-Abuse of Authority: Sergeant Mark Sinatra authorized the search of the vehicle in which § 87(2)(b) was an occupant

It is undisputed that Sgt. Sinatra entered § 87(2)(b)'s vehicle and that a grinder was uncovered.

§ 87(2)(g)

§ 87(2)(b) stated that while in his vehicle, § 87(2)(b) removed a grinder, her wallet, and her hairbrush from her purse because she was looking for something. Immediately prior to exiting his vehicle, § 87(2)(b) put these items back in her purse, which had a zipper and two straps. § 87(2)(b) testified that when he was standing by his trunk, he attempted to turn around and see what was going on with his vehicle. He saw one officer in the front seat with their legs out the door and another officer in the backseat with their legs out the door; he did not see their faces. After about twelve minutes, PO Russo showed § 87(2)(b) a grinder. § 87(2)(b) did not see any officers go through § 87(2)(b)'s purse. § 87(2)(b) attempted to tell PO Russo that the grinder was not his but PO Russo said, "Shut up." § 87(2)(b) observed that there was less than a gram of marijuana in the grinder. PO Russo looked inside § 87(2)(b)'s trunk, where § 87(2)(b) had art supplies, a sweater, and basketball shoes. § 87(2)(b) was taken back to the stationhouse and released with a DAT for possession of marijuana.

§ 87(2)(b) did not know if § 87(2)(b) had a grinder in her purse at the time of this incident. § 87(2)(b) did not see a grinder in § 87(2)(b)'s vehicle at any point and the only time she was made aware of the grinder was when § 87(2)(b) told her at the stationhouse. While § 87(2)(b) and § 87(2)(b) walked to the prisoner van, they walked past § 87(2)(b)'s vehicle. § 87(2)(b)'s driver's side door was open. § 87(2)(b) was not sure if she saw any officers enter § 87(2)(b)'s vehicle. At one point, Sgt. Sinatra told PO Russo to check the trunk, which PO Russo did. § 87(2)(b) could not remember exactly when this happened. § 87(2)(b) refused to cooperate with the investigation.

Det. Hoosack, Det. McGee, Det. Rosario, and PO Meyreles did not see any officers enter § 87(2)(b)'s vehicle and were not aware of any contraband found in his vehicle.

PO Russo and Sgt. Sinatra corroborated that after § 87(2)(b) was out of his vehicle, Sgt. Sinatra noticed a grinder in the center console. Sgt. Sinatra went inside the vehicle to obtain the grinder, which was discovered to contain marijuana. PO Russo did not search the vehicle and believed that the only officer to enter the vehicle was Sgt. Sinatra. Sgt. Sinatra believed other officers also entered and searched § 87(2)(b)'s vehicle but he did not recall who. This search was limited to the immediate area where the grinder was found. Neither officer recalled if they looked through the trunk of § 87(2)(b)'s vehicle. § 87(2)(a) 160.50

In People v. Galak, 81 N.Y.2d 463 (1993), the court explains the "automobile exception" to the Fourth Amendment's search warrant requirement. The automobile exception allows officers to

search a vehicle without a warrant when there is probable cause to believe that evidence or contraband will be found within. (Board Review 25)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date